Welcome Agreement and Release of Liability

We're glad you're here! This is the agreement between you and Sun Brewed Homestead Inc. ("the Homestead"), a California nonprofit public benefit corporation. Please read all of it, especially the boxed release, and ask a Steward about anything unclear before you sign. Below, "I" means you. If I sign for someone under 18, I am their parent or legal guardian and agree for them and for myself.

In plain words

- You're volunteering. You can say no to any task, or stop, at any time, and we'll show you how to do things safely.
- Farm work has real risks. **If you get hurt, even through our ordinary carelessness, you agree not to sue us.** That doesn't cover gross negligence or harm done on purpose.
- We may share photos and video of our days together, but never a child's full name or school. You can ask us to stop.
- We keep each other's private information private.

This summary is here to help. The numbered sections below are the agreement itself.

1. How we work together. I volunteer freely, without pay or the expectation of it, and I am not an employee; the Homestead does not provide workers' compensation or health insurance for volunteers unless it tells me so in writing. Either of us may end this at any time. The Homestead will show me how to do tasks safely, and **I may say no to any task or stop at any time.** I will treat everyone with respect and never harass, threaten or discriminate. I will not be alone and out of sight with a minor who is not my own, will not contact minors privately about Homestead matters, and will complete any training or background check California law (AB 506) requires of my role. I will follow safety instructions, wear closed-toe shoes, use only tools I have been shown, handle animals only when a lead asks, report every injury or hazard the same day, and never work under the influence. I will tell a lead about any condition or allergy that affects my safety, and I authorize emergency medical care, at my expense, if I cannot be reached. I will not speak, spend or make commitments for the Homestead unless a Steward authorizes it. If I drive for it, I hold a valid license and my own insurance, which is primary.

2. RELEASE OF LIABILITY AND ASSUMPTION OF RISK

Please read this box carefully. It gives up your right to sue us if you are hurt, including by our own carelessness.

_____ INITIALS

Risks. Homestead activities happen on a working urban farm and include gardening, digging, lifting, hand and power tools, water, sun and heat, soil and compost, and goats, chickens and cats. They carry risks, known and unknown, including falls, cuts, strains, stings, allergic reactions, heat illness, infection, and animal bites, scratches and kicks. **I take part voluntarily and assume all of these risks.**

Release. To the fullest extent the law allows, I, for myself, for any child I sign for, and for our heirs and estates, release, and agree not to sue, the Homestead and its directors, officers, volunteers, members and agents for any injury, illness, death or loss of property arising from my participation or my presence at the Homestead or its events, INCLUDING CLAIMS ARISING FROM THEIR ORDINARY NEGLIGENCE. This does not release gross negligence, willful misconduct, or any claim the law does not allow to be released. I will indemnify them against claims this releases that are brought by me or on my behalf. **I waive California Civil Code § 1542,** which reads: *"A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."*

3. Photos, video and voice. I give the Homestead permission to photograph, film and record me at its activities, and to use, edit and publish that media without payment, for its nonprofit mission: its website, social media, newsletters, flyers, presentations, and fundraising and grant materials. Adults may be named by first name only; a minor's full name, school or other identifying details are never published. The Homestead owns the media and will not sell it or license it for others' advertising. I release it from claims over that use, including privacy and publicity claims. I may withdraw this permission for future uses by telling a Steward in writing.

4. Mutual confidentiality. Each of us will keep private what we learn about the other and the people we serve: for the Homestead, details of donors, members, volunteers and adopters, anything about minors, its non-public finances and plans, codes, passwords and private discussions; for me, my contact, emergency and health details. We will use it only for Homestead work, share it only with those who need it, never sell it, and report any leak promptly. Nothing here limits reporting wrongdoing to a government agency, law enforcement or an attorney, or any disclosure the law protects, including under 18 U.S.C. § 1833(b). When my role ends I will return or delete Homestead materials and leave its accounts; these duties continue afterwards.

5. General. California law governs this agreement. If any part is held unenforceable, the rest remains in effect. It covers all my future participation until I revoke it in writing. I agree to sign electronically, and my electronic signature and initials bind me as if written by hand. **I have read this agreement and had the chance to ask questions about it. I understand I am giving up substantial rights, including the right to sue, and I sign it voluntarily.** In an emergency, the Homestead may contact the person below.

EMERGENCY CONTACT (NAME)

EMERGENCY CONTACT PHONE

Signed electronically. If the participant is under 18, a parent or legal guardian signs on their behalf.

SIGNATURE

DATE

PRINTED NAME

EMAIL